

		Agreement cannot compel non-signatory RSI to arbitrate under the City Agreement as is no arbitration clause contained in the City Agreement and neither Petitioner nor RSI are parties to the City Agreement. The arbitrator may determine what issues are arbitrable under Chestnut Contract, but the terms of the Chestnut Contract do not permit the arbitrator to force non-signatory parties to arbitrate issues from a different contract that does not have an arbitration provision. To the extent Petitioner claims to be able to enforce the terms of the City Agreement as a third-party beneficiary, the express terms of the City Agreement state the rights under the City Agreement only pertains to City and RWS and representatives, successors and permitted assigns” (Petition, Ex. A p. 168.) There is no evidence Petitioner falls under any of those categories. In short, Petitioner seeks to turn many of the authorities it cites on their head by seeking to join a nonsignatory as a defendant and sweep that defendant into arbitration when the nonsignatory is not asserting any rights under the agreement containing the arbitration agreement. Based on the foregoing, the petition is DENIED. Respondents’ counsel is ordered to give notice of this ruling.
5.	<i>Mann vs. Nice Sheen International, Inc.</i> 2024-01403670	<u><i>Please see the above notice regarding oral argument on June 25, 2026</i></u> Before the court is an unopposed motion to compel defendant and judgment debtor Nice Sheen International, Inc. (Debtor), to respond to requests for production, set one, and request for monetary sanctions filed by plaintiffs and judgment creditors Jeffrey Mann and Suzette Mann (collectively, Creditors). As more set forth below, the motion is GRANTED. Creditors served requests for production, set one, on Debtor. (Rader Decl. ¶ 2, Ex. 1.) Debtor failed to serve any responses to the requests for production by the date the motion was filed. (Rader Decl. ¶¶ 3-4, Ex. 2.) The responses are late, and Debtor has waived any objections thereto. (Code Civ. Proc., § 2031.300, subd. (a).) Creditors’ motion is proper to compel Debtor’s initial objection-free responses to the requests for production. (Code Civ. Proc., § 2031.300, subd. (b).) Creditors also request monetary sanctions against Debtor and its attorneys of record, which are permissible. (Code

		Civ. Proc., §§ 2023.010, 2031.300, subd. (c).) Creditors request a reasonable \$1,520 in monetary sanctions on this motion. (Rader Decl. ¶ 6.) Based on the foregoing, the motion is GRANTED. Debtor is ordered to serve code-complaint responses, without objections, to the requests for production and to produce all responsive documents within 20 days of service of written notice of the ruling. The request for monetary sanctions also is GRANTED. Creditors are awarded \$1,520 in attorney fees as against Debtor and its counsel of record, jointly and severally, payable to Creditors' counsel within 30 days of service of notice of this ruling. Creditors' counsel is ordered to give notice of these rulings.
6.	<i>Brimm vs. Mobilitas Insurance Company</i> <i>2026-01565804</i>	<u>Please see the above notice regarding oral argument on June 25, 2026</u> Before the court is the motion of Mobilitas Insurance Company (Mobilitas) to compel Byle Brimm (Brimm) to respond to requests for production of documents, set one, and request for monetary sanctions. As set forth below, the motion is CONTINUED TO THURSDAY, JULY 9, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Mobilitas to demonstrate this court has jurisdiction over Brimm and that this court is the proper court for these proceedings. This case is an uninsured or underinsured motorist case filed pursuant to Insurance Code section 11580.2, subdivision (f), to obtain a case number for purposes of having the court resolve any discovery disputes that may arise between the parties or otherwise make any other appropriate orders in aid of the arbitration between the parties. By the current motion, Mobilitas seeks an order compelling Brimm to respond to document requests Mobilitas propounded. Mobilitas, however, has failed to establish this court is the proper venue for these proceedings. Section 11580.2, subdivision (f), provides the superior court having jurisdiction over uninsured motorist proceedings such as this is the superior court (a) in the proper county for the filing of a lawsuit against the uninsured motorist for bodily injury arising from the accident or (b) in any county specified in the policy as a proper county for arbitration or action on the policy. (See Ins. Code, § 11580.2(f)(1), (2).) Here, the petition states the underlying accident occurred in San Francisco. Nothing is presented to show this court is the proper court for these proceedings. The court will need